

SUPREME COURT OF THE STATE OF NEW YORK

COUNTY OF NEW YORK: PART 51

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THE PEOPLE OF THE STATE OF NEW YORK, :

- against - : DECISION AND ORDER

████████████████████ : Ind. No. ██████████

Defendant. :

-----X

APRIL A. NEWBAUER, J.:

The defendant has moved to suppress physical evidence seized during his arrest and a statement he made to police. The motion is decided as follows:

FINDINGS OF FACT

Defendant is charged with one count each of attempted murder in the second degree (PL § 110 / 125.25(1)) and attempted assault in the first degree (PL § 110 / 120.10(1)). He is also charged with two counts each of criminal possession of a weapon in the second degree (PL § 265.03(3)) and criminal possession of a weapon with intent to use it unlawfully in the second degree (PL § 265.03(1)(b)). On January 3, 2024, the court granted the defendant's motion for suppression hearings. The court conducted combined *Huntley/Dunaway/Mapp* hearings on July 16, 2024, July 17, 2024, and August 19, 2024.

The People called two witnesses—Detective Damir Vukosa and Sergeant Tyler Conner, both of the NYPD. Det. Vukosa testified that on May 17, 2023, he and two partners were on duty in the Bronx in an unmarked vehicle. At approximately 1:30 a.m., Vukosa and his partners heard about a vehicle pursuit on their radios and went to assist the officers involved in the

pursuit. Vukosa and his partners spotted the vehicle in question and followed it. Vukosa was able to briefly see into the vehicle and observed four individuals in the car but was unable to distinguish whether the occupants were male or female, or any of their physical characteristics. The vehicle sped away from police and proceeded the wrong way on the RFK bridge. At this point, Vukosa lost sight of the vehicle. However, NYPD aviation was on the scene and relayed to Vukosa that the vehicle was entering Manhattan. Vukosa was informed that the vehicle stopped at the corner of 1st Avenue and 110th Street where the four occupants exited the vehicle and continued to flee on foot.

Vukosa proceeded to canvass for the vehicle's occupants, beginning at 1st Avenue and 110th Street. At approximately 2:00 a.m., Vukosa observed the defendant attempting to enter the White Castle located at the intersection of 103rd Street and 1st Avenue. Vukosa testified that he believed the White Castle was closed because he saw that "no one was inside, as well as the chairs were up." Tr. p. 53. Vukosa alerted his partners that the defendant was possibly one of the occupants of the vehicle they had previously pursued.¹ Meanwhile, the defendant had given up trying to enter White Castle and walked to a car that was parked in the White Castle lot. Defendant got into the front passenger seat.

Det. Vukosa and his partners then conducted a car stop, although the vehicle the defendant entered was of a different make and model than the vehicle the officers had previously pursued. Tr. p. 55. Vukosa testified that in addition to his previous suspicions about the defendant being one of the individuals who had been involved in the vehicle pursuit, he also approached the car because of "window tints on the vehicle, as well as the passenger didn't have

¹ How it was that Detective Vukosa came to the conclusion that someone at a White Castle was one of the perpetrators who had been fleeing from a vehicle about half a mile away remained completely unclear throughout the hearing.

a seatbelt on.” *Id.* at p. 57. Vukosa clarified that he did not observe the seatbelt issue until after the defendant had rolled down the window in the car but maintained that the windows of the car were excessively tinted. Vukosa testified that officers receive and carry a “tint meter” that measure the tint level on windows but that he did not have one the night of the defendant’s arrest. He did not testify that he asked the six other officers with him whether any of their cars had a tint meter.

One of Vukosa’s partners, Officer Shaw, first approached the defendant, sitting in the front passenger side. Vukosa and several other officers shined their flashlights into the car. Vukosa then approached and asked the defendant where he was going. The defendant replied that he lived in the area and was trying to go to the White Castle. Vukosa asked the defendant for his identification. Vukosa testified that the following occurred next: “[defendant] then took his cross-body bag across his chest to the right side of his body, off of his person completely, as well as took out his wallet quickly. When he took out his wallet quickly, I noticed an object inside of the passenger’s cross-body bag that resembled the slide of a firearm inside of it.” *Id.* at 66.

Vukosa asked the defendant to exit the vehicle, which the defendant did after questioning the officers about why he had to do so. Then Vukosa opened the bag. He testified that he then realized what he thought was a firearm was actually a cellphone and portable charger. Vukosa testified that he was going to return the bag to the defendant but felt what he thought was a firearm on the bottom of the bag. He ultimately recovered a 9-millimeter gun wrapped in a bandana. At that point, the officers placed both the defendant and the driver of the vehicle under arrest and they were transported to the twenty-third precinct.

Sgt. Conner testified that on May 17, 2023, at approximately 12:00 p.m., he interviewed

the defendant. He read the defendant his *Miranda* rights directly from a pre-printed card, and the defendant agreed to speak with him. The People introduced a recording of Sgt. Conner's interrogation of the defendant as Exhibits 4A – 4C.

CONCLUSIONS OF LAW

In seeking to introduce the physical evidence attributed to the defendant on their direct case at trial, the People bear the burden of providing evidence of the legality of the police conduct which led to the seizure of evidence. *People v. Whitehurst*, 25 N.Y.2d 389, 291 (1969); *People v. Malinsky*, 15 N.Y.2d 86, 91, n.2 (1965). Once the People have met their burden, the defendant has the ultimate burden of establishing the illegality of the police conduct by a fair preponderance of the evidence. *People v. Berrios*, 28 N.Y.2d 361 (1971). Any inquiry into the propriety of police conduct must weigh the degree of intrusion involved against the precipitating and attending circumstances out of which the encounter arose. *People v. Salaman*, 71 N.Y.2d 869, 870 (1988); *People v. DeBour*, 40 N.Y.2d 210, 223 (1976). The court must determine whether the police conduct was reasonable considering the totality of the circumstances. *People v. Batista*, 88 N.Y.2d 650, 653 (1996).

The Stop

Police officers are permitted to conduct a traffic stop of a vehicle if they have probable cause to believe that the driver has committed a traffic violation. *People v. Guthrie*, 25 N.Y.3d 130, 133 (2015). There is some ambiguity as to whether the officers' approach of the defendant's vehicle can be truly categorized as a "stop," since the vehicle was not yet in motion, although the car was on. The court finds that the officers' approach of the vehicle the defendant was in can be categorized as a stop, but not as a seizure. In *People v. Ocasio*, 85 N.Y.2d 982,

984 (1995), the court analyzed what constituted a seizure “where the car was neither parked nor moving,” finding that a seizure “requires the fact finder to apply a settled standard: whether a reasonable person would have believed, under the circumstances, that the officer's conduct was a significant limitation on his or her freedom.” The defense argues that the defendant was seized essentially from the moment the officers approached him, because there were numerous officers and they used their vehicles to box the defendant in. However, the officers did not have their guns drawn and did not, at this point, order the defendant or the vehicle’s other occupant out of the car, nor move to handcuff and arrest them. *See id.* (holding that “all the facts” must be considered in the seizure analysis including “was there a chase; were lights, sirens or a loudspeaker used; was the officer's gun drawn, was the individual prevented from moving; how many verbal commands were given; what was the content and tone of the commands; how many officers were involved; where did the encounter take place”).

Although there was no seizure at the point the officers approached the defendant, officers still needed probable cause to approach the vehicle in the first place. Det. Vukosa and the People gave several reasons why the initial approach of the defendant was justified. First, Vukosa testified that he believed the defendant could have been one of the four individuals who he had pursued previously and who ultimately fled on foot. The court rejects this rationale entirely. Vukosa admitted that he was not able to observe anything about the “physical appearance” of the four occupants. Tr. p. 48. Vukosa had no reason whatsoever to believe that the defendant had been involved in the car chase other than his own “hunch,” which is simply insufficient. *See Terry v. Ohio*, 392 U.S. 1 (1968); *People v. Cantor*, 36 N.Y.2d 106 (1975).

Second, Vukosa described several of the defendant’s actions that he felt were suspicious prior to approaching the vehicle. Vukosa recounted that the defendant was “attempting to enter a

White Castle that was closed,” and then looked at the unmarked police vehicles, appeared to know they were police despite being unmarked, and entered his own car. Tr. p. 52-55. Once again, the implication that the defendant’s actions were unusual or suspicious enough to justify the police approach of the vehicle is without merit. The defendant was not even the only person attempting to patronize the White Castle. And a sign in the window stated it was open 24 hours. The officers’ actions were understandable as the continuation of the hunt for the four fleeing suspects, but, they had no reason to suspect the defendant in particular.

Third, Vukosa testified during the hearing, and previously at the Grand Jury, that he approached the defendant at least in part because he was not wearing a seatbelt. However, Vukosa seemed to retract this proffered justification by the time he testified at the hearing. Vukosa admitted that the defendant had just re-entered the car at the time he was approached by the officers, and the car had not yet begun to move. Additionally, Vukosa acknowledged at the hearing that—given the tinted windows—he would not have been able to see whether the defendant was wearing a seatbelt until after he approached and asked the defendant to roll down the window.

The added rationale of tinted windows was the only proffered justification that would have made approaching the vehicle lawful. Vehicle and Traffic Law § 375 (12-a)(b) establishes that, “[n]o person shall operate any motor vehicle upon any public highway, road or street” with windshields or windows that have “a light transmittance of less than seventy percent.” The defendant argues that the vehicle he was in did not violate this law because it was in a parking lot and not a public highway, road, or street. Although courts have held that traffic stops cannot be made in some parking lots, they draw a distinction between public and private parking lots. See *People v. Allen*, 184 A.D.3d 1076, 1078 (4th Dept. 2020) (holding that stop based on section of

Vehicle and Traffic Law was improper in parking lot that “belonged to a public housing complex”). Unlike the Vehicle and Traffic Law at issue in *Allen*, § 375 does not explicitly include parking lots within its jurisdiction. However, courts have defined a “public highway” as “a public way; that is, it must be a way ‘over which the public have a general right of passage.’” *See People v. Thew*, 44 N.Y.2d 681, 682 (1978). The parking lot the defendant was in was not “private” as the case law defines the term; it contained at least one commercial establishment—the White Castle—and was intended for and open to public passage. Therefore, a traffic stop based on a violation § 375 (12-a)(b) could be justified if the vehicle was indeed in violation of this law.

Det. Vukosa testified that when he approached the vehicle the defendant had just gotten into, he believed the window tints were “below 70 percent” because he “wasn’t able to see inside of the vehicle at all.” Tr. p. 57. In *People v. Nektalov*, 2024 N.Y. Slip Op. 02725 *2 (Ct. of Appeals, 2024), the court held that it was not a sufficient justification for a traffic stop based on improper window tint if an officer merely testified “that the tint was ‘excessive,’” since that is “effectively a legal conclusion that the tint violated the Vehicle and Traffic Law.” In the matter before the court, Det. Vukosa provided precisely the kind of factual basis to support an allegation of excessively tinted windows that the court found lacking in *Nektalov*.

It is certainly hard to believe that excessively tinted windows constituted the primary reason Vukosa and the other officers approached the defendant. At the Grand Jury, Vukosa stated that “I conducted a car stop and when I conducted this car stop I asked [REDACTED] for his ID and information because he had didn't have a seatbelt on.” During the hearing, Vukosa gave yet a different reason; he testified that after he observed the defendant in the parking lot, he “relay[ed] it to my partners behind me in a separate vehicle that this possibly

could be one of the individuals that fled from the vehicle we were chasing.” Tr. p. 54. At no point during the interactions that Vukosa and the officers have with the defendant do they mention the window tints. To the contrary, when the defendant questioned why he was being approached and told to get out of the car, the officers said there was an ongoing investigation and referred to the helicopters that were involved in the prior vehicle pursuit. Ex. 1. Neither Vukosa nor any of the other officers attempt to retrieve and use a tint meter to actually measure the tint of the windows or even discuss it. At the hearing, Vukosa testified that NYPD officers are provided with tint meters and that the “tint meter is tested every shift before you use it.” Tr. p. 57. However, as the Court of Appeals made clear in *People v. Robinson*, 97 N.Y.2d 341, 350 (2001), law enforcement can make a pretextual traffic stop, so long as the stop is “based on probable cause that a driver has committed a traffic violation, without regard to the primary motivation of the police officer.” Here, notwithstanding any other explanations previously offered for their actions, the officers conducted the car stop lawfully because they had probable cause that the car was in violation of the law prohibiting excessively tinted windows.

Initial Questioning and Request for Identification

Shortly after Vukosa approached the defendant, he asked him what he was doing and subsequently requested his identification. The defense argues that if the reason the officers approached the car was for a traffic stop, it was improper of them to speak to the defendant and ask him for ID since he was not the driver. This claim is plainly belied by the case law. See *People v. Ocasio*, 85 N.Y.2d 982, 983 (1995) (“When defendant stopped at a red light, an officer walked to either side of the car and tapped on the window, asking for identification [from both defendant and passenger.”]). Furthermore, the asking of a few, non-accusatory questions to the

defendant did not elevate the nature or level of the stop. *See People v. DeBour*, 40 N.Y.2d 210 (1976).

Seizure + Search

When Vukosa asked for identification, the defendant complied and retrieved his wallet from an over-the-shoulder Louis Vuitton logo bag. Vukosa testified that at the moment the defendant opened the bag, he caught a glimpse of what he believed was a firearm. He immediately ordered the defendant to get out of the car so the bag could be inspected. This was the moment that the traffic stop turned into a seizure and search of the defendant. When the defendant hesitated to leave the car per Vukosa's order, another officer again demanded he leave the car telling the defendant, "every traffic stop we do, we own. There is no option. You have to get out of the car." Ex. 1. No reasonable person in the defendant's position would have felt he was free to leave at this point; to the contrary, the officers were explicitly communicating he had no freedom of movement and had to do what they commanded. *See People v. Ocasio*, 85 N.Y.2d 982 (1995); *People v. Cantor*, 36 N.Y.2d 106 (1975).

To lawfully prolong a traffic stop to the point of seizing the occupant of the vehicle, officers must have reasonable suspicion to believe the defendant committed a crime independent of the traffic offense. *See People v. Barreras*, 253 A.D.2d 369 (1st Dept. 1998); *People v. May*, 28 Misc.3d 1204(A) (1st Dept. 2008). The People argue that Vukosa was justified when he asked the defendant to get out of the car and searched his bag because he had seen what he thought was a firearm. Vukosa testified that he was mistaken about a firearm being in the top of the defendant's bag—what he thought was a firearm was actually the defendant's cell phone. Vukosa testified that it was not until he was putting the bag back down when he felt what he recognized as a firearm in the bottom of the defendant's bag:

I then go to place the bag back down and explain the reason why I asked the individual to exit the vehicle, because I want her to understand, and I was going to explain to [REDACTED] that the reason I told them to exit the vehicle was because I thought that was a firearm, and I was wrong. *Then at that point is when I felt what I believed to be a firearm on the bottom of the bag.* Tr. P. 74.

The problem here is that Vukosa's body camera footage does not support his testimony. In the footage, Vukosa reaches for the defendant's bag at timestamp 2:47. Ex. 1. He then rummages in the bag, taking items out and then putting the bag down at 2:58. He does this without appearing to hold the bottom of the bag as claimed. He then immediately picks it up again and once again roots around in the bag for 10-15 seconds. It is not until timestamp 3:11-13 that Vukosa puts down the bag and immediately picks it up again. He calls out "ninety-two times two" and the atmosphere of the scene changes. Another officer tells the driver of the car to "get the fuck out" of the car and removes her. *Id.* If Vukosa saw what he honestly believed to be a firearm and not a cellphone for the split-second when the defendant opened the bag to retrieve the wallet, Vukosa might have signaled to his fellow officers that a dangerous weapon was in reaching distance of the driver, who was not ordered out. Furthermore, Vukosa admitted the firearm was wrapped in a bandana, shedding further doubt on his claim that he was able to determine—simply by holding the defendant's bag—that there was a firearm in the bottom. Rather, the entire sequence of events suggests that Vukosa was playing his hunch ("I knew it" (timestamp 3:17)) by continuing to the point where he found something of interest.

Finally, even if Vukosa's discovery of the firearm had transpired in precisely the manner he testified to, his prolonged search of the defendant's bag impermissibly infringed on the defendant's Fourth Amendment rights. In *Arizona v. Hicks*, 480 U.S. 321 (1987), the Supreme Court ruled that an officer's manipulation of items in the defendant's apartment constituted a separate, unreasonable search. As the court explained, "the 'distinction between looking at a

suspicious object in plain view and moving it even a few inches’ is much more than trivial for purposes of the Fourth Amendment.” *Id.* at 325 (internal quotations omitted). Similarly, Vukosa saw that the object in the top portion of the bag was a cellphone, not a firearm as he previously believed, and put the bag down. The picking up of the bag again, and additional seconds during which Vukosa conducts a more thorough and search of the bag went well beyond the initial check of the top of the defendant’s bag which would have been permissible under the plain view doctrine.

The extended and thorough nature of the search Det. Vukosa performed distinguishes the matter before the court from a case such as *People v. Bowden*, 87 A.D.3d 402 (1st Dept. 2011), in which the court upheld an officer’s warrantless seizure of a gun from the defendant’s bag. In *Bowden*, the defendant dropped a bag and the officer heard a loud noise. The officer picked up the bag and; “through the fabric of the bag felt an L-shaped, hard object causing him to conclude that it was a gun.” *Id.* at 403. The body cam footage belies any claim that Vukosa was able to make a similar conclusion simply by picking up the defendant’s bag. One, there was no loud thump. Two, the bag was made of a leather or faux leather material that could not be manipulated easily to feel the contents. Ex. 6. Third, Vukosa is seen rummaging and feeling around in different areas of the bag; he also put it down and picked it back up again. The specter of a firearm in the top of the bag—which should have been easily confirmed or not—cannot justify such an extensive search of the defendant’s bag in the absence of other suspicious behavior. Unlike the defendant in *People v. Ocasio*, 85 N.Y.2d 982 (1995), who provided the investigating officer with an ID that was clearly stolen since it depicted another person bearing no physical resemblance to the defendant, defendant [REDACTED]’s behavior and response to Vukosa and the other officers gave them no reason to suspect he had committed a crime. [REDACTED] in fact

was in the process of complying with Vukosa's command to provide his ID when he was ordered out of the car.

The People also cite *People v. Carvey*, 88 N.Y.2d 707 (1997), in support of their argument that Vukosa was justified in searching the defendant's bag. However, the facts in *Carvey* also make it distinguishable from the matter before the court. In *Carvey*, the defendant was not able to produce any documentation when asked for identification by the officer. Another officer noticed the defendant "bent down and place something under the seat with his right hand." *Id.* at 709. The same officer observed that the defendant was wearing a bullet proof vest. *Id.* These three facts each represent an additional reason why officers were justified conducting a search in *Carvey*; however, [REDACTED] produced appropriate paperwork when it was requested, made no furtive or strange movements, and was not wearing a bullet proof vest or other suspicious clothing.

The trial court is tasked with evaluating the credibility of witnesses and Vukosa's testimony had the hallmark appearance of having been tailored to nullify constitutional objections. *See People v. Garafolo*, 44 A.D.2d 86 (2nd Dept. 1974); *see also People v. Grunwald*, 29 A.D.3d 33 (1st Dept. 2006). A cursory search of the defendant's bag would have been justified if Vukosa had seen something resembling a weapon, but Vukosa's search went well beyond this. Coupled with the non-justifiable reasons originally given for the stop and the gap between his testimony and his actions on the body cam, this search violates constitutional principles. Since Vukosa's search of the defendant's bag was unlawful, the firearm that he found within the bag must be suppressed.

THE STATEMENT

The defendant asks that the court suppress the statement he made to Sgt. Conner at the police precinct. The first question the court must address regarding the statement is whether the People have met their burden of proving the statement was made voluntarily and in keeping with the safeguards against self-incrimination established by *Miranda v. Arizona*, 384 US 436 (1966). The video of the interrogation by Sgt. Conner establishes that the defendant was properly advised of his *Miranda* rights and that the defendant waived those rights and agreed to answer questions. Nonetheless, the defense argues that the defendant's statement was involuntary because of "ploys used in regard to allegations about [REDACTED] [the co-defendant] and her culpability that were used to elicit statements." Tr. p. 49. Evidence that the accused was threatened, tricked, or cajoled into a waiver will show that the defendant did not voluntarily waive the privilege against self-incrimination. See *People v. Thomas*, 22 NY2d 629 (2014). However, a waiver is not involuntary where no threats or promises are made, and the officers' make no misrepresentations that create a substantial risk that the defendant might falsely incriminate itself. See *id.*; CPL § 60.45(2)(b)(i). Here, Sgt. Conner simply informed the [REDACTED] that his co-defendant, [REDACTED], was also charged with possessing the firearm but that those charges could be dropped. This was an accurate statement; Sgt. Conner made no misrepresentations or promises to [REDACTED] regarding the charges faced by [REDACTED]. Furthermore, [REDACTED] had already told Conner that the firearm was his at the time Conner made the statements about [REDACTED]. The statement the defendant made to Conner was undisputably voluntary.

The second question the court must address is whether the statement must be suppressed as fruit of the unlawful seizure of the defendant. See *People v. Rodriguez*, 11 N.Y.2d 279 (1962). "Evidence that is obtained through illegal police action is not automatically subject to

the exclusionary rule.” *People v. Bradford*, 15 N.Y.3d 329, 333 (2010). The court must determine whether the challenged evidence—in this case, the defendant’s statement to Conner—is sufficiently attenuated from the unlawful search and seizure of the defendant. *Id.* Here, the People introduced no evidence of attenuation. Rather, the People argued that the court “should also deny the defendant’s motion to suppress his subsequent statement to Sergeant Conner because all the police conduct up till that point was lawful and, therefore, the later statement is not tainted by any earlier police action.” Tr. P. 89.

Courts have consistently held that, “[a]pplication of the attenuation doctrine is a mixed question of law and fact.” *See, e.g., People v. Bradford*, 15 N.Y.3d 329, 333 (2010). Sgt. Conner based his questioning of the defendant almost entirely on his arrest and the discovery of the firearm in the defendant’s bag. Conner began the interview by asking the defendant if he knew why he was there. When the defendant responded by stating the reasons he believed he had been initially stopped by the police, Conner rephrased the question as: “do you know why you’re arrested though?” Ex. 1. The defendant stated that “they said a firearm.” *Id.* Conner proceeds to ask the defendant several questions about the firearm, including if the defendant has “seen the firearm before.” *Id.* In response, the defendant confesses that the firearm is his. The defendant’s statement “was the direct result of and not sufficiently attenuated from the illegality itself.” *People v. Hill*, 153 A.D.3d 413, 419 (1st Dept. 2017).

The People introduced no evidence of “intervening events” between the unlawful search and seizure of the defendant and Conner’s questioning of him. *See People v. Rogers*, 52 N.Y.2d 527 (1981) (explaining that statements following an illegal arrest can be admissible “where the discovery of the challenged evidence was attenuated from the illegal activity by a significant intervening event which justified the conclusion that that evidence was not the product of the

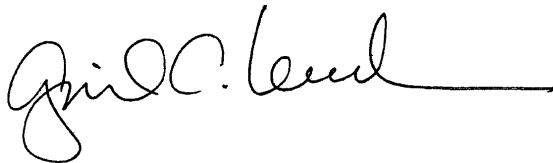
illegal activity”); *People v. Divine*, 21 A.D.3d 767 (1st Dept. 2009) (finding sufficient attenuation between defendant’s unlawful arrest and inculpatory statement because “there was a significant intervening event”). In *People v. Divine*, the appellate court affirmed the trial court’s denial of the defendant’s suppression motion because in between the defendant’s unlawful arrest and his interrogation, police obtained a statement from the defendant’s accomplice that separately “implicated defendant and provided probable cause for his arrest.” *Id.* The People introduced no evidence that something similar occurred in this matter, although the co-defendant was also arrested at the scene. As a result, the defendant’s statements to Sgt. Conner are suppressed.

This is the decision and order of the court.

E N T E R

Dated: New York, New York

September 5, 2024

A handwritten signature in black ink, appearing to read "April A. Newbauer", with a long horizontal flourish extending to the right.

April A. Newbauer

Acting Supreme Justice Court